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CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN vs EQUITY LIFESTYLE PROPERTIES, INC.	MOTION TO COMPEL: ANSWER/RESPONSE TO SPECIAL INTERROGATORIES SET ONE AND PRODUCTION OF DOCUMENTS REQUESTS FOR PRODUCTION, SET ONE
CVRI2504523	BROWN vs EQUITY LIFESTYLE PROPERTIES, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED ORDER DETERMINING THE LEGAL EFFECT OF DEFENDANTS' RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE, AND DEEMING MATTERS ADMITTED

Tentative Ruling:

Plaintiff's Motion to Compel Further Responses to Requests for Production (RFP), Special Interrogatories (SPROG), and to deem Admissions (RFA) Admitted are denied.

Pursuant to C.C.P. §§ 2030.300(b)(1) and 2031.310(b)(2), when filing a motion to compel further responses to discovery, a moving party must submit a meet and confer declaration that complies with C.C.P. § 2016.040. (*Ibid.*) C.C.P. § 2016.040 states that a meet and confer declaration must show a reasonable and good faith attempt at informal resolution of each issue addressed by the motion. (*Ibid.*) The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-17.) For purposes of determining whether a motion to compel discovery was preceded by a reasonable and good faith effort to meet and confer, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294, citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439; see also, *Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294 [courts look at “whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit”].)

In the present case, Plaintiff sent an email to defense counsel stating their discovery responses were insufficient, and Defendants did not respond. (See, Decl. of Suzanne Brown iso Reply at ¶¶ 14-17.) Plaintiff did not call Defendants' counsel or even follow up on the correspondence. (*Ibid.*) C.C.P. § 2016.040 clearly requires that the parties attempt to meet and confer “in person, by telephone, or by videoconference,” and Plaintiff did not do this. Therefore, she fails to show a reasonable and good faith attempt at resolution.

The Discovery Responses Were Timely

Plaintiff served RFPs and SPROGs on Defendants on March 30 and 31, 2026, respectively. (Decl. of Rebecca Kim [“Kim Decl.”] at ¶¶ 5-6.) On June 22, 2026, Defendants served responses/objections. (Kim Decl. at ¶ 7.)

Defendants attempted to file an anti-SLAPP motion on April 20, 2026, but it was rejected by the Court due to a processing or clerical error. (Decl. of Rebecca Kim in Opposition to Motion to Determine Discovery Deadlines and Timeliness of Defendants’ Discovery Responses [“Discovery Deadlines Kim Decl.”] at ¶ 3.) Defendants then refiled the anti-SLAPP motion on May 11, 2026. (*Id.* at ¶ 4.)

Pursuant to C.C.P. §425.16(g), “[a]ll discovery proceedings in the action shall be stayed upon the filing” of an anti-SLAPP motion, and the discovery stay is to remain in effect until notice of entry of the order ruling on the anti-SLAPP motion. Thus, discovery was stayed as of the date Defendants filed their anti-SLAPP motion.

The clerk’s functions are ministerial, and the clerk has no discretion to reject a complaint or other document that substantially complies; the remedy is to issue a nunc pro tunc that deems the complaint/document filed when it was presented. (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 777-778; *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276, 279; *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1279.) Since the anti-SLAPP motion filed by Defendants on April 20, 2026 appears to have been improperly rejected by the clerk, it should be deemed filed April 20, 2026. (*Ibid.*) Thus, discovery in this matter was stayed from April 20, 2026, until the Court denied the anti-SLAPP motion on June 10, 2026.

The discovery was served on March 30, 2026 – 21 days prior to April 20, 2026. This gave Defendants 9 days from the June 10, 2026 denial of the anti-SLAPP motion to serve their discovery responses. As Friday, June 19, 2026 was a holiday, followed by the weekend, the deadline for responding was extended to Monday, June 22, 2026. (See, C.C.P. § 12a.) As there is no dispute that Defendants served responses to the RFPs and SPROGs on June 22, 2026, their responses were timely. Since the responses were timely, Defendants did not waive their objections to the discovery.

Separate Statement

Defendants argue that Plaintiff’s motion should be denied because she failed to submit a separate statement in compliance with CRC 3.1345. This is correct.

CRC 3.1345(a) states that “[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement,” including a motion to compel further responses to interrogatories or RFPs. CRC 3.1345(c) states that “[a] separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other

document in order to determine the full request and the full response.” Rule 3.1345 also requires that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) A trial court is well within its discretion to deny a motion to compel discovery based on the party’s failure to comply with the separate statement requirements of CRC Rule 3.3145(a). (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Here, Plaintiff failed to provide any separate statement. While Plaintiff argues that Defendants’ responses to the discovery were not code-compliant, without a separate statement, the Court cannot determine the validity of the objections.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507346	CAMACHO vs RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION TO STRIKE COMPLAINT ON COMPLAINT
CVRI2507346	CAMACHO vs RIVERSIDE UNIFIED SCHOOL DISTRICT	DEMURRER ON COMPLAINT

Tentative Ruling:

Defendant’s Demurrer, as to the 1st and 3rd Causes of Action is denied; as to the 2nd Cause of Action, it is sustained with 20 days leave to amend.

Defendant’s Motion to Strike is denied.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Government Claims Act

Compliance with the Government Claims Act is a “condition precedent” to maintaining a suit for damages against a public entity. (Govt. Code, § 945.4; *State of California v. Superior Court* (*Bodde*) (2004) 32 Cal.4th 1234, 1240.)